



POLICE DEPARTMENT

April 13, 2012

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Carlos Pava
Tax Registry No. 921662
32 Precinct
Disciplinary Case Nos. 85338/09 & 85409/09

The above-named member of the Department appeared me on December 6, 2011,
charged with the following:

Disciplinary Case No. 85338/09

1. Said Police Carlos Pava, assigned to the 32nd Precinct, on or about and between February 23, 2006 and March 1, 2006, did wrongfully travel to Cuba via Canada on two occasions without permission from the United States Office of Foreign Assets Control.

P.G. 203-1, Page 1, Paragraph 5 – GENERAL REGULATIONS
CODE OF FEDERAL REGULATIONS, TITLE 31, § 515.420 – TRAVEL TO
CUBA
CODE OF FEDERAL REGULATIONS, TITLE 31, § 515.201 TRANSACTION
INVOLVING FOREIGN COUNTRIES

2. Said Police Carlos Pava, assigned to the 32nd Precinct, on or about and between January 1, 2008, August 13, 2008 and September 16, 2008, was made aware that he was the subject of three investigations conducted by the Toronto Police Service and did thereafter fail and neglect to notify the Operations Unit and Desk Officer of the details of the investigation.

P.G. 212-32, Page 1, Paragraph 2 – OFF DUTY INCIDENTS INVOLVING
MEMBERS OF THE SERVICE

Disciplinary Case No. 85409/09

1. Said Police Officer Carlos Pava, while assigned to the 32nd Precinct, on or about December 4, 2008, while on duty, failed to sign in at the police court room in a timely manner, to wit: said Police Officer arrived at court and reported directly to the Assistant District Attorney without first signing in at the police court room, as required.

P.G. 206-03, Page 1, Paragraph 24 VIOLATIONS SUBJECT TO COMMAND DISCIPLINE

2. Said Police Officer Carlos Pava, while assigned to the 32nd Precinct, on or about February 2, 2009, while on-duty, failed to perform his duties as directed, to wit: after being instructed by Lieutenant Cabanilla that he could not change his tour, said Police Officer failed to attend the outdoor range as directed and performed a tour on the first platoon.

P.G. 203-05, Page 1, Paragraph 1 – PERFORMANCE ON DUTY-GENERAL
P.G. 206-03, Page 1, Paragraph 29 – VIOLATIONS SUBJECT TO COMMAND DISCIPLINE

3. Said Police Officer Carlos Pava, while assigned to the 32nd Precinct, on or about March 5, 2009, while on-duty, conspired to obtain permission to take a vacation day after he requested permission and it was denied, to wit: after being informed by Police Administrative Assistant Kanoute that he could not take March 6, 2009 off, said Police Officer later requested permission from Sergeant Deen, who granted the request.

P.G. 203-19, Page 2, Paragraph 15 – VACATION POLICY

4. Said Police Officer Carlos Pava, while assigned to the 32nd Precinct, on or about March 17, 2009, while on-duty, failed to report to the desk for an assignment, was off-post and failed to sign out on time.

P.G. 206-03, Page 1, Paragraphs 2 & 16 – VIOLATIONS SUBJECT TO
COMMAND DISCIPLINE
P.G. 203-05, Page 1, Paragraph 2 – PERFORMANCE ON DUTY-GENERAL

5. Said Police Officer Carlos Pava, while assigned to the 32nd Precinct, on or about April 5, 2009, failed to notify the Operations Unit regarding an off-duty domestic incident that took place outside of New York City, to wit: said Police Officer was assaulted by the mother of his child on April 4, 2009 while he was in Toronto, Canada visiting his child.

P.G. 212-32, Page 1, Note OFF DUTY INCIDENTS INVOLVING
UNIFORMED MEMBERS OF THE SERVICE

The Department was represented by Rudolph Behrmann, Esq., Department Advocate's Office, and Respondent was represented by Craig Hayes, Esq.

Respondent, through his counsel, entered a plea of Guilty to the subject charges and testified in mitigation of the penalty. A transcript of the mitigation record has been prepared and is available for the Police Commissioner's review.

DECISION

Disciplinary Case No. 85338/09

Respondent, having pleaded Guilty, is found Guilty as charged.

Disciplinary Case No. 85409/09

Respondent, having pleaded Guilty, is found Guilty as charged.

SUMMARY OF EVIDENCE IN MITIGATION

Respondent, a 13-year member of the Department, is currently assigned to the 32 Precinct. He has never before been the subject of Department charges. Respondent testified that he has one child, Person A, who is five years old. The mother of Person A is Person B. Respondent and Person B were engaged when Person A was born, but they have since separated.

With regard to the specification concerning his reporting directly to the Assistant District Attorney (ADA) without first signing in on December 4, 2008, Respondent explained that it was a lapse of judgment. He was in a rush and went straight to the ADA. He conceded that it was completely his fault.

With regard to the specification that on February 2, 2009, after being instructed by Lieutenant Cabanilla that he could not change his tour, Respondent failed to attend the outdoor range as directed and did a tour in the first platoon, he explained that he asked his immediate supervisor instead of the lieutenant. The immediate supervisor approved his request to change his tour rather than go to the range. Respondent conceded that he was at blame and should have asked the lieutenant, as the lieutenant was the appropriate person to approach for that problem.

With regard to the specification that on March 6, 2009, after being denied a vacation day by a Police Administrative Aide (PAA), Respondent asked a sergeant for the day off, he claimed that he was unaware that he could not do this. He realizes now that he was mistaken. He explained that while he knew that "you couldn't do from one sergeant to another boss, [he] didn't know from a PAA to a sergeant that you couldn't do that." He did know, though, that PAAs were in charge of scheduling vacation days.

Respondent conceded that he failed to sign out on March 17, 2009, that it was a lapse in judgment, and it was completely his fault.

With regard to the specification that he failed to report an off-duty domestic incident on April 5, 2009, Respondent testified that he was assaulted by Person B that day in Toronto, Canada, and Person B was subsequently arrested. He explained that he was experiencing the trauma of the assault and did not realize that he was supposed to report the incident. He conceded that this was a lapse in judgment on his part. He reported the incident once he got back to New York to his precinct.

Respondent testified that during the time frame of the five acts, between December 4, 2008 and April 5, 2009, he was going through a custody battle with

Person B over their son. Person A was born in Canada, was a Canadian citizen, and was living in Canada with Person B, who had custody at the time. It was very difficult for Respondent because he had to travel more than eight hours each way to go to Canada, and it was very expensive. Person B was making it difficult for Respondent to see Person A, and the custody litigation was not cordial. The fact that Person B is bipolar made the situation even more difficult. Respondent stated that it took a lot to deal with the process, and his mind was not completely on the job, which it should have been, and it was his fault for all the lapses in judgment and not being able to concentrate as hard as he should have while at work. The custody issue ultimately got resolved with Person B getting custody and Respondent getting visitation rights. Since the matter was resolved, there have not been any other charges of misconduct leveled against him.

With regard to the specification concerning his travels to Cuba in 2006, Respondent testified that his relationship with Person B at that point was good and that she was his fiancée at the time. Person B's father, who is a police officer in Canada, invited them to go to Cuba and the father told Respondent that it would be all right as long as he did not spend any money in Cuba because of the trade embargo. It was, thus, Respondent's understanding that if he did not spend any money, he would not be in violation of any United States trade embargoes or laws. Person B's father said that he was going to pay for everything, which he did, because he invited them on the trip to Cuba as an engagement present. Respondent did not spend any of his own money on the trip.

Respondent subsequently learned while speaking with his attorney in preparation for this case that his trip was a violation of law despite the fact that he did not spend

money. Respondent found out that loophole was closed in 2004, but he was not aware of the change at the time of the 2006 trip. The federal government never fined him nor was he ever charged either civilly or criminally by the United States for violation of any trade embargo or federal law.

With regard to the specification involving the Toronto Police Service investigations, Respondent explained that Person B used to make a lot of complaints to the police, and the police used to call Respondent and ask him questions. According to Respondent, there were never any allegations where he felt like he needed to report them to the Department. He was unaware at the time that he was supposed to report any police contact. Respondent stated that his contact with the Toronto police was by phone. He was never interrogated by them in person about allegations, and he was never taken into custody regarding any allegations. He now knows that if he is ever contacted over the phone by any police agency where he is the subject of an investigation, he must notify the Department.

During cross-examination, Respondent acknowledged that he traveled to Cuba by way of Toronto in February 2006. He confirmed that the only advice that he relied upon regarding the propriety of his travel to Cuba was the advice from Person B's father. Respondent testified that the trip was pretty much a surprise because he went up to Canada to spend a week with his fiancée at the time, and he was surprised when they left for Cuba the same day. Respondent trusted that Person B's father knew what he was talking about since he was a police officer. Respondent acknowledged that it was his own fault for not getting confirmation regarding whether or not it was proper for him to travel to Cuba. Respondent showed his passport at the Havana airport, but the passport

was not stamped. He was aware at the time that there was some kind of an embargo between the United States and Cuba.

Respondent testified that when he was assaulted, he reported the incident when he came back to the United States, and not immediately, because he did not know at the time that even though he was a victim the incident had to be reported immediately. He believed that he was making a timely notification by reporting the incident as soon as he got back to his command.

With regard to the telephone calls from the Toronto police, Respondent stated, "They just questioned me because [Person B] . . . tried to make some sort of harassment charge, and they asked me about it, and they said we are not charging you with harassment, we are just letting you know she is making these phone calls." Respondent confirmed that he understands that there was a law enforcement agency which was conducting some sort of investigation involving him. At the time, however, he did not think the situation was important enough to notify the Department since he was not dealing with a valid police complaint but rather just telephone calls letting him know what was going on.

Respondent confirmed that on February 2, 2009, he did not attend the range even though he was initially scheduled to do so. He also confirmed that on March 5, 2009, he requested permission for a day off after his previous request for that day off was denied. He further confirmed that on March 17, 2009, he was off post, failed to sign out, and failed to report to the desk for an assignment.

Respondent did not return to the United States immediately after his April 4, 2009 assault, but he could not recall exactly how long he remained in Canada. It did not occur

to him to report the incident to the Department because he was in shock from the assault, and he did not think that notification had to be immediate since he was a victim.

Respondent reiterated that he had Person B arrested.

Upon further questioning, Respondent stated that Person B's father owns property in Cuba.

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. See Matter of Pell v. Board of Education, 34 N.Y.2d 222 (1974).

Respondent was appointed to the Department on February 28, 1994. Information from his personnel file that was considered in making this penalty recommendation is contained in an attached confidential memorandum. Respondent has pleaded Guilty to wrongfully traveling to Cuba via Canada on two occasions without permission from the United States Office of Foreign Assets Control. Respondent explained that his fiancée's father was a Canadian police officer who owned property in Cuba and who traveled often. He relied on his fiancée's father's representation that if Respondent spent no money in Cuba, he would not be in violation of any embargo agreements and would be free to travel to Cuba. Respondent subsequently learned that this policy had been revoked in 2004 and did not apply to his travel in 2006.

This is the most serious of the Charges. Respondent explained that the trip to Cuba was a surprise gift from his fiancée's father. He only had days in Canada to prepare for the trip and he relied on the representation made by his fiancée's father. In addition, the representation had been the law but was revoked. Moreover, the United States did

not sanction Respondent in any manner for his travel to Cuba. The Court found these to be mitigating factors.

Respondent also pleaded Guilty to failing to notify the Operations Unit of the details of the investigation when he learned that he was the subject of three investigations conducted by the Toronto Police Service. Respondent explained that he had only telephone conversations with the Toronto police and they informed him that they were not proceeding with a case against Respondent, but rather just informing him that his fiancée made allegations against him. Respondent realized that he was under a mistaken belief that since no criminal charges would result, that he had no duty to report the matters to the Department.

Respondent pleaded Guilty to other administrative violations which included: failing to sign in at the police court room before reporting directly to an Assistant District Attorney; failing to attend the outdoor range as directed by a lieutenant; obtaining permission to take a vacation day from a sergeant after a Police Administrative Aide informed him that his request had been denied; on March 17, 2009, Respondent while on duty failed to report to the desk for his assignment, was off-post and failed to sign out on time. Respondent also pleaded Guilty to failing to notify Operations of an off duty domestic incident where he was assaulted.

Respondent testified in mitigation to these Charges that during the three-month period of December 2008 through March 2009, when he amassed these Charges and Specifications, he was under a great deal of stress in his personal life that he did not inform the Department about. He was undergoing a custody battle with the mother of his only child; the mother who was once his fiancée, who had since broken off the

engagement. His son, who was three years old at the time, was born in Canada, lived with his mother there and Respondent had to travel eight hours just to visit with his son. His son's mother was preventing him from seeing his son and Respondent had to commence legal proceedings in Canada to get visitation rights. It was a protracted legal battle and it was during this time that he sought time off which was denied and he amassed the other administrative violations. In addition, Respondent was assaulted by his son's mother and she was arrested. Respondent, who was the victim in that instance, received Charges for not promptly notifying the Department of the incident. Respondent pleaded Guilty to the Charge but noted that he waited until he returned to the United States to report the matter at work and was at the time of the incident not only a victim, but also traumatized. The Court finds mitigating factors here. Respondent admitted to his Guilt in all of the Charges and realized that if he had disclosed some of his legal battles to a supervisor, it may have helped his situation.

The Assistant Department Advocate recommends a penalty of 35 vacation days. The Court disagrees. Given the fact that the Court found mitigating factors here, it recommends that Respondent forfeit 25 vacation days.

APPROVED
DEC 31 2012
Raymond W. Kelly
RAYMOND W. KELLY
POLICE COMMISSIONER

Respectfully submitted,
Claudia Daniels-DePeyster
Claudia Daniels-DePeyster
Assistant Deputy Commissioner – Trials

POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER CARLOS PAVA
TAX REGISTRY NO. 921662
DISCIPLINARY CASE NOS. 85338/09 & 85409/09

In 2010 and 2011, Respondent received an overall rating of 3.0 "Competent" on his annual performance evaluations. In 2009, he received a rating of 3.5 "Above Competent." Respondent has received one Excellent Police Duty Medal in his career to date.

[REDACTED]

Respondent received a Negative Performance Evaluation on December 15, 2001 and December 15, 2010, both of which were low in behavioral dimensions. On September 28, 2009, Respondent was placed in Level II Discipline Monitoring based on his overall record.

For your consideration.


Claudia Daniels-DePeyster
Assistant Deputy Commissioner – Trials